

**CHAPTER 38.**

An Act to provide for the registration and inspection of nursing homes, and for purposes connected therewith. [22nd December 1927.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Registration of nursing homes.

1.—(1) If any person carries on a nursing home without being duly registered in respect thereof, he shall be guilty of an offence against this Act and shall in respect of each such offence be liable on summary conviction to a fine not exceeding fifty pounds or, in the case of a second or subsequent offence, to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds or to both such imprisonment and fine.

(2) Application for registration shall be made to the local supervising authority in writing in the form prescribed by the Minister of Health, and shall be accompanied by a fee of five shillings.

(3) Subject as provided in this Act, the local supervising authority shall, on the receipt of an application for registration, register the applicant in respect of the nursing home named in the application and issue to him a certificate of registration:

Provided that the authority may refuse to register the applicant if they are satisfied—

- (a) that he or any person employed by him at the home is not a fit person, whether by reason of age or otherwise, to carry on or to be employed at a nursing home of such a description as the nursing home named in the application; or
- (b) that for reasons connected with situation, construction, accommodation, staffing or equipment, the home or any premises used in connection therewith are not fit to be used for a nursing home of such a description as the nursing home named in the application, or that

the home or premises are used or to be used for purposes which are in any way improper or undesirable in the case of such a nursing home; or

- (c) in the case of a nursing home (other than a maternity home) which was not in existence at the commencement of this Act, that the home is not under the charge of a person who is either a duly qualified medical practitioner or a qualified nurse and who is resident in the home, or that there is not a proper proportion of qualified nurses among the persons having the superintendence of or employed in the nursing of the patients in the home; or
- (d) in the case of a nursing home (other than a maternity home) which was in existence at the commencement of this Act, that the nursing of the patients in the home is not under the superintendence of a qualified nurse who is resident in the home; or
- (e) in the case of a maternity home which was not in existence at the commencement of this Act, that the person having the superintendence of the nursing of the patients in the home is not either a qualified nurse or a certified midwife, or that any person employed in attending any woman in the home in childbirth or in nursing any patient in the home is not either a duly qualified medical practitioner, a certified midwife, a pupil midwife or a qualified nurse.

For the purpose of the foregoing provisions, a nursing home or maternity home shall not be deemed to be a home which was in existence at the commencement of this Act if, in the case of a home carried on at that date by an individual, it ceases to be carried on by that individual solely or, in the case of a home which was carried on at that date by a body corporate, it ceases to be under the charge of the individual under whose charge it was at that date.

(4) The certificate of registration issued in respect of a nursing home shall be kept affixed in a conspicuous place in the home, and, if default is made in complying

with the foregoing requirement, the person carrying on the home shall be guilty of an offence against this Act.

Cancellation of registration.

2. Subject as provided in this Act, a local supervising authority may at any time cancel the registration of a person in respect of any nursing home on any ground which would entitle them to refuse an application for the registration of that person in respect of that home,<sup>f</sup> or on the ground that that person has been convicted of an offence against this Act or that any other person has been convicted of such an offence in respect of that home.

Notice of refusal or of cancellation of registration.

3.—(1) Before making an order refusing an application for registration or an order cancelling any registration, the local supervising authority shall give to the applicant or to the person registered, as the case may be, not less than fourteen days' notice of their intention to make such an order, and every such notice shall state the grounds on which the authority intend to make the order and shall contain an intimation that, if within fourteen days after the receipt of the notice the applicant or person registered informs the authority in writing that he desires so to do, the authority will, before making the order, give him (in person or by a representative) an opportunity of showing cause why the order should not be made.

(2) If the authority, after giving the applicant or the person registered (if under the provisions of the preceding subsection he is entitled so to do) an opportunity of showing cause as aforesaid, decide to refuse the application for registration or to cancel the registration, they shall make an order to that effect and shall send a copy of the order by registered post to the applicant or the person registered.

(3) Any person aggrieved by an order refusing an application for registration or cancelling any registration may, within fourteen days after the date on which the copy of the order was sent to him, appeal against it to a court of summary jurisdiction, and the appellant or the local supervising authority, if aggrieved by the order made by a court of summary jurisdiction on any such appeal, may appeal against that order to a court of quarter sessions in manner prescribed by the Summary Jurisdiction Acts.

(4) No such order shall come into force until the expiration of fourteen days from the date on which it

was made, or, where notice of appeal is given against it, until the appeal has been decided or withdrawn.

4.—(1) The local supervising authority may make Byelaws.  
byelaws—

(a) prescribing the records to be kept of the patients received into a nursing home, and, in the case of a maternity home, of any miscarriages occurring in the home, and of the children born therein and of the children so born who are removed from the home otherwise than to the custody or care of any parent, guardian, or relative;

(b) requiring notification to be given of any death occurring in a nursing home.

(2) The provisions of sections one hundred and eighty-two to one hundred and eighty-six of the Public Health Act, 1875, shall, so far as they relate to byelaws made by an urban sanitary authority, apply to byelaws made under this section. 38 & 39 Vict.  
c. 55.

(3) If any person acts in contravention of or fails to comply with the provisions of any byelaw made under this Act, he shall be guilty of an offence against this Act.

5.—(1) The medical officer of health of the local supervising authority or some qualified nurse or other officer duly authorised by them may, subject to such regulations as may be made by the authority, at all reasonable times enter and inspect any premises which are used, or which that officer has reasonable cause to believe to be used, for the purposes of a nursing home, and to inspect any records required to be kept in accordance with the provisions of this Act: Inspection  
of nursing  
homes.

Provided that nothing in this Act shall be deemed to authorise any such officer to inspect any medical record relating to any patient in a nursing home.

(2) If any person refuses to allow any such officer to enter or inspect any such premises as aforesaid or to inspect any such records as aforesaid, or obstructs any such officer in the execution of his powers under this section, he shall be guilty of an offence against this Act.

Power to  
exempt  
certain in-  
stitutions.

6.—(1) A local supervising authority may grant exemption from the operation of this Act in respect of any hospital or institution not carried on for profit.

(2) Any exemption granted under this section in respect of any hospital or institution shall continue in force for one year only from the date on which it is granted, but without prejudice to the power of the local supervising authority to grant any further exemption in respect of that hospital or institution.

(3) Any person who is aggrieved by the refusal of a local supervising authority to grant exemption under this section in respect of any hospital or institution, or by the withdrawal by the authority of any such exemption, may appeal against the refusal or withdrawal to the Minister of Health, and the Minister, after considering the matter, shall give such directions therein as he thinks proper, and the authority shall comply with any directions so given.

Power of  
Minister to  
exempt  
Christian  
Science  
nursing  
homes.

7.—(1) The Minister of Health may grant exemption from the operation of this Act in respect of any nursing home, as respects which he is satisfied that it is being or will be carried on in accordance with the practice and principles of the body known as the Church of Christ Scientist.

(2) It shall be a condition of any exemption granted to a nursing home under this section that the nursing home shall adopt and use the name of Christian Science house.

(3) An exemption granted under this section in respect of a nursing home may at any time be withdrawn by the Minister if it appears to him that that home is no longer being carried on in accordance with the said practice and principles.

Penalty for  
offences  
against Act  
and provi-  
sion as to  
offences by  
companies.

8.—(1) If any person is guilty of an offence against this Act (other than an offence in respect of which some other penalty is specifically provided by this Act) he shall in respect of each offence be liable on summary conviction to a fine not exceeding five pounds, and, in the case of a continuing offence, to a further fine not exceeding two pounds in respect of each day on which the offence continues after conviction.

(2) Where a person convicted of an offence against this Act is a company, the chairman and every director of the company and every officer of the company concerned in the management thereof shall be guilty of the like offence, unless he proves that the act constituting the offence took place without his knowledge or consent.

9.—(1) For the purposes of this Act, the council of every county as respects that county and the council of every county borough as respects that borough shall be the local supervising authority.

(2) The council of a county may, on the application of the council of any county district within the county, delegate to the district council, either with or without any restrictions or conditions as the county council thinks fit, any of the powers or duties of the county council under this Act.

(3) If any district council by which an application is made under subsection (2) of this section is aggrieved by the refusal of the county council to delegate any of its powers or duties under this Act or to delegate any such powers or duties otherwise than subject to conditions or restrictions, the district council may make a representation to the Minister with respect to the matter, and the Minister, after consultation with the county council may direct the county council to delegate to the district council either with or without restrictions or conditions such of its powers and duties under this Act as the Minister thinks proper, and the county council shall comply with any direction so given.

(4) Any expenses incurred under this Act by the local supervising authority shall be defrayed—

- (a) in the case of the council of a county, as expenses for general county purposes;
- (b) in the case of the council of a county borough, as part of the general expenses of the council in the execution of the Public Health Acts :

Provided that any expenses incurred by a district council in the execution of any powers or the performance of any duties delegated by the county council to the district council under this section shall, up to an amount not exceeding such sum as may be fixed by the county council, be repaid to the district council by the county

council, and the amount by which the expenses so incurred exceed the amount repaid by the county council shall be defrayed by the district council as part of the general expenses of the council in the execution of the Public Health Acts.

(5) Any fees received by the council of a county under this Act shall be paid into the county fund, and any fees received by a county borough under this Act shall be paid into the borough fund or, in the case of a borough having a general rate fund, into the general rate fund, and any fees received by a district council under this Act shall, as the county council may direct, either be paid to the county council or applied in reduction of the sum to be repaid by the county council to the district council under this section.

Interpre-  
tation.

**10.**—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say,—

“Register” and “Registration” mean register and registration under this Act :

“Nursing home” means any premises used or intended to be used for the reception of and the providing of nursing for persons suffering from any sickness, injury, or infirmity, and includes a maternity home but does not include—

(i) any hospital or other premises maintained or controlled by a Government department or local authority or by any other body of persons constituted by special Act of Parliament or incorporated by Royal Charter ;

(ii) any institution for lunatics within the meaning of the Lunacy Act, 1890 ;

(iii) any certified institution, certified house or approved home within the meaning of the Mental Deficiency Act, 1913 :

53 & 54 Vict.  
c. 5.

3 & 4 Geo. 5.  
c. 28.

“Maternity home” means any premises used or intended to be used for the reception of pregnant women or of women immediately after childbirth :

“Qualified nurse” means a person registered in the general part of the register of nurses required

to be kept under the Nurses Registration Act, 1919, or a person who had before the commencement of this Act completed a three years' course of training in a hospital which was during the period of her training, or subsequently became, a training school approved by the General Nursing Council for England and Wales, or the General Nursing Council for Scotland, or the General Nursing Council for Northern Ireland, for the purpose of admission to the general part of the said register :

“Pupil midwife” means a person who is undergoing training with a view to becoming a certified midwife, and for that purpose attending women in childbirth as part of a course of practical instruction in midwifery recognised by the Central Midwives Board.

(2) In relation to any premises used or intended to be used solely for the reception of, and the provision of nursing for, a class of patients in whose case the requisite nursing can be suitably and adequately provided by nurses of a class whose names are contained in some part of the register of nurses required to be kept under the Nurses Registration Act, 1919, other than the general part of that register, references in the definition of “qualified nurse” contained in subsection (1) of this section to the general part of the register shall be construed as including references to that other part of the register.

**11.** This Act shall apply to the administrative county of London subject to the following modifications:—

Application  
to London.

- (i) As respects the county of London the London County Council and as respects the City of London the Common Council shall be the local supervising authority;
- (ii) Any expenses incurred under this Act by the London County Council shall be defrayed as general county expenses and any expenses so incurred by the Common Council shall be defrayed out of the general rate;
- (iii) The London County Council may delegate to the council of any metropolitan borough all or any of its powers under this Act other than the



power to make byelaws, and any such delegation may be either absolute or subject to such terms or conditions as the London County Council may think fit, including conditions for the repayment by the London County Council to a council to whom powers are so delegated of the whole or part of the expenses incurred by that council in the execution of the powers so delegated;

- (iv) Any expenses incurred by the council of a metropolitan borough in the execution of any powers delegated to it shall, in so far as those expenses are not repaid to that council by the London County Council, be defrayed as part of the general expenses of the council, and any fees received under this Act by the council of a metropolitan borough shall be paid into the fund out of which expenses incurred under this Act by that council are to be defrayed.

Short title,  
extent, re-  
peal and  
commence-  
ment.

**12.**—(1) This Act may be cited as the Nursing Homes Registration Act, 1927.

(2) This Act shall not apply to Scotland or Northern Ireland.

(3) Subject as hereinafter provided, so much of any local Act as makes provision for the registration of any maternity home is hereby repealed, and the enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule:

Provided that any person who is immediately before the commencement of this Act registered under any enactment repealed by this Act in respect of any maternity home, shall if the authority with which he is registered under the said repealed enactment is for the purposes of this Act the local supervising authority of the area in which the home is situate, be deemed for all the purposes of this Act to be as from the commencement of this Act, a person duly registered thereunder in respect of that home.

(4) This Act shall come into operation on the first day of July, nineteen hundred and twenty-eight.

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## SCHEDULE.

## ENACTMENTS REPEALED.

Section 12.

| Session and Chapter.      | Short Title.                                | Extent of Repeal.                                                                                                                                                       |
|---------------------------|---------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 16 & 17 Geo. 5.<br>c. 32. | The Midwives and Maternity Homes Act, 1926. | Part II, section twelve, in subsection (1) of section fourteen the words "and Maternity Homes" in both places where they occur, and subsection (3) of section fourteen. |

## CHAPTER 39.

An Act to confirm and give effect to certain agreements between representatives of Great Britain, the Irish Free State and Northern Ireland as to the registration and control of medical practitioners and dentists, and to validate certain acts done by the Dental Board.  
[22nd December 1927.]

**W**HEREAS the agreements set out in the Schedule to this Act have been entered into between representatives of Great Britain, the Irish Free State and Northern Ireland, with respect to the registration and control of medical practitioners and dentists, and it is expedient that the said agreements should be confirmed and effect given thereto :

And whereas doubts may arise as to the validity of acts done after the establishment of the Irish Free State by the Dental Board as first constituted under the Dentists Act, 1921 :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this

11 & 12  
Geo. 5. c. 21.